

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 21, 2026
8:30 AM/1:30 PM

16. SIERRA OLSON V. JUAN CHAVEZ

PFL20140209

Respondent filed a Request for Order (RFO) on April 6, 2026, along with a declaration regarding address verification, a declaration under the UCCJEA, and a declaration regarding visitation and records. There is no Proof of Service for these documents.

Petitioner filed a Responsive Declaration on May 6, 2026, which does not object to service, therefore, the court deems the issue to be waived. Petitioner objects to Respondent's requests for custody and parenting plan orders.

Respondent filed a Declaration on May 12, 2026. It was mail served on May 12, 2026.

The court has read and considered the filings as outlined above. The court notes the parties were not referred to Child Custody Recommending Counseling (CCRC), as they had previously been referred in the prior six months. Petitioner did not attend CCRC as she was not properly served. The court finds good cause to refer the parties to CCRC at this time. Parties are to attend CCRC on Thursday, July 2nd at 9:00 AM with Michaela Murphy and return for a review hearing on Thursday August 13th at 1:30 PM in Department 5.

Pending the review hearing, all prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #16: THE COURT FINDS GOOD CAUSE TO REFER THE PARTIES TO CCRC AT THIS TIME. PARTIES ARE TO ATTEND CCRC ON THURSDAY, JULY 2ND AT 9:00 AM WITH MICHAELA MURPHY AND RETURN FOR A REVIEW HEARING ON THURSDAY, AUGUST 13TH AT 1:30 PM IN DEPARTMENT 5 PENDING THE REVIEW HEARING, ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO*

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LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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17. ANGELA SCHULER V. MARTIN SCHULER

23FL0273

Respondent filed a Request for Order (RFO), on January 29, 2026, seeking an order setting aside the default entered on August 1, 2024. Proof of Service shows Petitioner was mail served on January 29, 2026.

Petitioner has not filed a Responsive Declaration.

Petitioner filed a RFO on March 3, 2026, requesting an order to have Petitioner's name removed from Respondent's home title and mortgage. Respondent was served on March 13, 2026.

Petitioner filed a Request to Reschedule on March 11, 2026. The court granted the request on March 12, 2026, and the hearings on both RFO was rescheduled for May 21, 2026, at 1:30 PM in Department 5.

Respondent has not filed a Responsive Declaration to Petitioner's RFO.

"The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." Cal. Civ. Pro. § 473(b). Family Code section 2122 also vests the court with the authority to set aside a judgment in matters of actual fraud or perjury. Fam. Code § 2122. In either case, the burden is on the moving party to establish grounds for relief. Austin v. L.A. Unified School Dist., 244 Cal. App. 4th 918 (2016); See *also* Fam. Code § 2121 ("Before granting relief, the court shall find that the facts alleged as the grounds for relief materially affected the original outcome and that the moving party would materially benefit from the granting of the relief.") The moving party is tasked with not only establishing that grounds for relief exist but also establishing that the error was *excusable* on the part of the moving party. *Austin* at 929; See *also Huh v. Wang*, 158 Cal. App. 4th 1406, 1419 (2007).

In addition to establishing grounds for relief, the moving party must make its motion within the legally specified time frames. In matters of actual fraud or perjury, the motion shall be brought within one year of the date the moving party either discovered or should have discovered the fraud or perjury; and in instances of mental incapacity, the motion is to be brought within two years. Fam. Code § 2122 (a), (b) & (d).

In the matter at hand, Respondent fails to meet his burden of establishing grounds for relief or set aside. The court finds Respondent has failed to bring the action within the statutory time frame. The court finds Respondent was aware of the divorce proceedings